



CHAPTER 7.

An Act to grant certain additional duties of Customs and Inland Revenue, including Excise, to alter other duties, and to amend the Law relating to Customs and Inland Revenue, including Excise, and the National Debt, and to make further provision in connection with Finance. A.D. 1914.
 [27th November 1914.]

Most Gracious Sovereign,

WE, Your Majesty's most dutiful and loyal subjects the Commons of the United Kingdom of Great Britain and Ireland in Parliament assembled, towards raising the necessary supplies to defray Your Majesty's public expenses, and making an addition to the public revenue, have freely and voluntarily resolved to give and grant unto Your Majesty the several duties herein-after mentioned; and do therefore most humbly beseech Your Majesty that it may be enacted, and be it enacted, by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I.

CUSTOMS AND EXCISE.

1. In lieu of the duty of customs payable on tea imported into Great Britain and Ireland there shall, as from the eighteenth day of November nineteen hundred and fourteen until the first day of July nineteen hundred and fifteen, be charged, levied, and paid the following duty (that is to say):—

Tea, the pound - - - eightpence.

Increased duty
on tea.

2.—(1) In addition to the duties of Customs payable on beer of the descriptions called mum, spruce, or black beer, imported into Great Britain or Ireland, there shall, as from the eighteenth day of November nineteen hundred and fourteen

Addition to
Customs duties
on special
kinds of beer.

A.D. 1914. be charged, levied, and paid the following duties (that is to say) :—

£ s. d.

For every thirty-six gallons of beer where the worts thereof are, or were before fermentation, of a specific gravity—

Not exceeding one thousand two hundred and fifteen degrees - - - - 3 9 0

Exceeding one thousand two hundred and fifteen degrees - - - - 4 0 10

(2) This section shall extend to Berlin white beer, and other preparations, whether fermented or not fermented, of a character similar to mum, spruce, or black beer.

Addition to Customs duty on all other beer.

3. In addition to the duties of Customs payable on every description of beer (other than is specified in the last preceding section) imported into Great Britain or Ireland, there shall, as from the eighteenth day of November nineteen hundred and fourteen, be charged, levied, and paid the following duty (that is to say) :—

£ s. d.

For every thirty-six gallons where the worts thereof were before fermentation of a specific gravity of one thousand and fifty-five degrees 0 17 3

and there shall be allowed and paid in respect of all such beer a similar addition to the drawback granted on exportation, shipment for use as stores, or removal to the Isle of Man, by section four of the Customs and Inland Revenue Act, 1881 ;

44 & 45 Vict.
c. 12.

And so as to both duty and drawback in proportion for any difference in gravity.

Addition to excise duty on beer.

4. In addition to the duty of excise payable in respect of beer brewed in the United Kingdom there shall, as from the eighteenth day of November nineteen hundred and fourteen, be charged, levied, and paid—

For every thirty-six gallons of worts of a specific gravity of one thousand and fifty-five degrees, the duty of seventeen shillings and threepence,

and in addition to the drawback of excise otherwise payable in respect of beer exported from the United Kingdom as merchandise or shipped for use as ship's stores there shall be allowed and paid in respect of beer brewed in the United Kingdom on or after the eighteenth day of November nineteen hundred and fourteen—

For every thirty-six gallons of beer of an original gravity of one thousand and fifty-five degrees, the drawback of seventeen shillings and threepence,

and so as to both duty and drawback in proportion for any difference in quantity or gravity.

5. The following rebates of the additional Customs and Excise duty on beer of seventeen shillings and threepence under this Act shall temporarily be allowed, namely :—

A.D. 1914.
Temporary
rebate of
additional
beer duty.

Period.	Rebate.	Reduced Rate.
Up to the thirty-first day of March nineteen hundred and sixteen.	Two shillings -	Fifteen shillings and threepence.
After the thirty-first day of March nineteen hundred and sixteen, and up to the thirty-first day of March nineteen hundred and seventeen.	One shilling -	Sixteen shillings and threepence.

and the additional duty of Customs payable in respect of beer of the descriptions called mum, spruce, or black beer, and drawback, shall be proportionately diminished.

6. Subject to such regulations and security as the Commissioners of Customs and Excise may prescribe, a brewer for sale may without payment of duty deposit beer brewed in the United Kingdom in a warehouse approved by the Commissioners for the purpose, and may remove the beer from that warehouse for exportation or for use as ship's stores, and where any beer brewed in the United Kingdom on which duty has been paid is deposited in such a warehouse for the purpose of being exported or shipped as stores, drawback shall be allowed and paid as if the deposit in the warehouse were the exportation or shipment of the beer.

Power to
deposit in
bond beer for
export.

7.—(1) The Inland Revenue Act, 1880, shall have effect as though, as the table to be used for determining the original gravity of worts of beer, there were substituted for the table set out in the First Schedule to that Act the revised table an original copy of which, marked Table A., has been signed by the Chairman of the Commissioners of Customs and Excise, and deposited in the office of the King's Remembrancer at the Royal Courts of Justice :

Amendment
of law as to
determination
of gravity of
worts of beer.
43 & 44 Vict.
c. 20.

Provided that where the original gravity has been ascertained by the officer in accordance with the said revised table under section fifteen of the Inland Revenue Act, 1880, a deduction of three quarters of a degree shall be allowed from the gravity so ascertained for the purpose of the charge of duty in accordance with subsection (3) of section thirteen of the Inland Revenue Act, 1880 (which requires the duty to be charged according to the gravity as entered in the book by the brewer, or as ascertained by the officer, whichever is the higher).

(2) Any definite quantity of worts to be distilled for the purpose of ascertaining original gravity under section fifteen of the Inland Revenue Act, 1880, shall, before being distilled, be cleared from sediment by filtration.

A.D. 1914.

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(3) Where it is necessary to ascertain the original gravity of beer, whether for the purpose of duty or for any other purpose of the Customs Acts or of the Excise Acts, the original gravity shall be ascertained in the manner prescribed by section fifteen of the Inland Revenue Act, 1880, as amended by this Act.

Certain liquors
not to be
treated as beer.

8. Liquor made elsewhere than upon the licensed premises of a brewer of beer for sale which on analysis of a sample thereof at any time is found to be of an original gravity not exceeding one thousand and sixteen degrees, and to contain not more than two per cent. of proof spirit, shall not (though but for this section within the definitions of beer contained in section two of the Inland Revenue Act, 1880, as amended by section four of the Customs and Inland Revenue Act, 1885, or in section fifty-two of the Finance (1909-10) Act, 1910), be deemed to be beer within those definitions.

48 & 49 Vict.
c. 51.

10 Edw. 7. c. 8.

Reduction of
licence duty
where hours
of sale are
curtailed.

4 & 5 Geo. 5.
c. 77.

4 & 5 Geo. 5.
c. 29.

9.—(1) If the holder of a retailer's on-licence proves that the sale or consumption of intoxicating liquor on his premises has in any year been suspended during any hours under the Intoxicating Liquor (Temporary Restriction) Act, 1914, or under any Regulations made in pursuance of the Defence of the Realm Act, 1914, or any Act re-enacting that Act with or without amendment, he shall be entitled to a repayment of any duty paid by him in respect of his licence at the rate per annum of one-fifteenth part of the duty for every hour or part of an hour that the sale or consumption has been so suspended.

This provision shall not have effect as respects premises in any area to which the Secretary of State orders that it is not to apply owing to the increased opportunities afforded for the sale of intoxicating liquor due to the concentration of troops in the area.

3 & 4 Geo. 5.
c. 33

(2) In order to make provision for the case where hours of sale are curtailed by section seven of the Temperance (Scotland) Act, 1913, the holder of a retailer's on-licence in Scotland shall (in addition to any other relief granted by this section) be entitled to a rebate of two-fifteenths of the duty payable by him in respect of his licence.

(3) The amount of any duty repaid or allowed under this section shall in no case exceed one-fourth part of the whole duty payable by the licence holder in respect of his licence.

Limit of time
for payment
of beer duty.

10. The power of the Commissioners of Customs and Excise to defer the time for payment of beer duty under section sixteen of the Inland Revenue Act, 1880, may be exercised so as to delay the time of payment for a period not exceeding one month beyond the time limited in that section.

Penalty for
non-compliance
with Customs
orders as to
entry and

11. If any person who is required by any order of the Commissioners of Customs and Excise under section one hundred and thirty-nine of the Customs Consolidation Act, 1876, to make entry and obtain clearance of any goods before

shipment fails to comply with the order, he shall be liable in A.D. 1914. respect of each offence to a penalty of one hundred pounds, without prejudice to the operation of any other provisions of that section, or any other provisions contained in that Act.

clearance of
goods before
shipment.
39 & 40 Vict.
c. 36.

PART II.

INCOME TAX.

12.—(1) In order, as far as may be, to provide for the collection of income tax (including super-tax) for the last four months of the current income-tax year at double the rates at which it is charged under the Finance Act, 1914, the following provisions shall have effect:—

Increase of
income tax
and super-tax.
4 & 5 Geo 5.
c. 10.

(a) The amount payable in respect of any assessment already made of income tax chargeable otherwise than by way of deduction, or of super-tax, shall be treated as increased by one-third, and any authority to collect the tax, and remedy for non-payment of the tax, shall apply accordingly; and

(b) An assessment of any such income tax or super-tax not already made shall be made for an amount one-third more than that for which it would have been made if this Act had not passed; and

(c) Such deductions shall be made in accordance with regulations prescribed by the Commissioners of Inland Revenue in the case of dividends, interest, or other annual sums (including rent) due or payable after the fifth day of December nineteen hundred and fourteen as will make the total amount deducted in respect of income tax for the year equal to that which would have been deducted if income tax for the year had been at the rate of one shilling and eightpence; and

(d) Subsection (1) of section fourteen of the Revenue Act, 1911, shall apply, in cases where both the half-yearly payments referred to therein have been paid before the passing of this Act, as if this Act were the Act imposing income tax for the year, and as if one shilling and eightpence were the rate ultimately charged for the year; and

(e) Where the amount of any exemption, relief, or abatement under the Income Tax Acts is to be determined by reference to the amount of income tax on any sum, the amount of the tax shall be calculated at one shilling and eightpence, with a proportionate reduction where relief is granted under section six of the Finance Act, 1914; and where income tax is payable in respect of a part only of a year, the tax shall be deemed to be at the rate of one shilling and eightpence.

A.D. 1914.

3 & 4 Geo. 5.
c. 3.

Relief in
respect of
diminution of
income due to
war.
5 & 6 Vict.
c. 35.
28 & 29 Vict.
c. 30.
7 Edw. 7. c. 13.

(2) For the purpose of the Provisional Collection of Taxes Act, 1913, or of continuing income tax for any future income tax year, the rate of income tax for the current year shall be deemed to be two shillings and sixpence.

13.—(1) Section one hundred and thirty-three of the Income Tax Act, 1842, and section six of the Revenue Act, 1865 (which provide for the reduction of assessments or the repayment of duty in certain cases where the profits of the year of assessment fall short of the sum on which the assessment has been made), shall, notwithstanding their repeal by section twenty-four of the Finance Act, 1907, have effect as respects any assessment to income tax for the current income tax year where it is proved to the satisfaction of the Commissioners, by whom the assessment has been made, that the diminution of profits and gains on account of which relief is claimed under those sections is due to circumstances attributable directly or indirectly to the present war, whether those circumstances are a specific cause of the diminution of income within the meaning of section one hundred and thirty-four of the Income Tax Act, 1842, or not; and diminution of profits and gains on account of which relief can be given under this section shall not be deemed to be a specific cause authorising the grant of relief under the said section one hundred and thirty-four.

The foregoing provision, in its application to the case of any person who, in connection with the present war, is or has been serving as a member of any of the military or naval forces of the Crown, or in any work abroad of the British Red Cross Society, or the Saint John Ambulance Association, or any other body with similar objects, shall be construed as if that provision referred only to section one hundred and thirty-three of the Income Tax Act, 1842, and contained no reference to section six of the Revenue Act, 1865.

(2) Where it is proved to the satisfaction of the Commissioners for the special purposes of the Acts relating to income tax that the actual income from all sources of any individual charged to super-tax for the current income tax year is or will be less than two-thirds of the income on which he is liable to be so charged, he shall be entitled to postpone the payment of so much of the super-tax payable by him as represents the difference between the tax payable on the income on which he is liable to be assessed and the tax which would have been payable by him if he had been assessed on his actual income; and any amount of which the payment is so postponed shall, subject to any provisions which may be made by Parliament, become payable on the first day of January nineteen hundred and sixteen.

43 & 44 Vict.
c. 19.

(3) Section fifty-nine of the Taxes Management Act, 1880 (which relates to the statement of a case on a point of law), shall apply to cases in which relief is claimed under this section.

PART III.

A.D. 1914.

LOAN.

14.—(1) Any amount raised by the Treasury under the War Loan Act, 1914, which is in their opinion required for the purpose of defraying the expenses of the present war shall be deemed to be duly raised in accordance with the powers given by that Act, notwithstanding that the amount raised may exceed the supply for the time being granted to His Majesty for the service of the year ending the thirty-first day of March nineteen hundred and fifteen: Provided that such excess does not exceed one hundred million pounds.

Provision with respect to war loans.
4 & 5 Geo. 5. c. 60.

(2) None of the provisions of the House of Commons (Disqualification) Act, 1782, or the House of Commons (Disqualifications) Act, 1801, shall be construed so as to extend to any subscription or contribution to any loan raised under the War Loan Act, 1914.

22 Geo. 3. c. 45.
41 Geo. 3. c. 52.

(3) The definition of Government stock in subsection (2) of section five of the Savings Bank Act, 1893, shall be read as if stock issued under the War Loan Act, 1914, were included in the First Schedule to the said Savings Bank Act, 1893.

56 & 57 Vict. c. 69.

PART IV.

NATIONAL DEBT.

15. In the financial year ending on the thirty-first day of March nineteen hundred and fifteen, that portion of the permanent annual charge for the National Debt which is not required for the annual charges directed by the National Debt and Local Loans Act, 1887, or any other Act, to be paid out of that charge, or for the redemption of any Exchequer bonds under section seven of the Finance Act, 1905, which are drawn for redemption on the eighteenth day of April nineteen hundred and fifteen, shall not be paid.

Partial suspension of new sinking fund.

50 & 51 Vict. c. 16.

5 Edw. 7 c. 4.

PART V.

MISCELLANEOUS.

16. Section sixteen of the Revenue Act, 1911 (which suspends temporarily the obligation to pay half the proceeds of land value duties for the benefit of local authorities), shall have effect and shall be deemed always to have had effect as if the limiting words "but not beyond the thirty-first day of March nineteen hundred and fourteen" were omitted therefrom.

Further suspension of obligation to pay half the proceeds of land value duties to local authorities.
1 Geo. 5. c. 2.

17.—(1) Part I. of this Act, so far as it relates to duties of Customs, shall be construed together with the Customs (Consolidation) Act, 1876, and any enactments amending that Act, and so far as it relates to duties of excise shall be construed together with the Acts which relate to the duties of excise and the management of those duties.

Construction and short title.
39 & 40 Vict. c. 36.

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Part II. of this Act shall be construed together with the Income Tax Acts, 1842 to 1853, and any other enactments relating to Income tax, and those enactments and Part II. of this Act are in this Act referred to as the Income Tax Acts.

(2) This Act may be cited as the Finance Act, 1914 (Session 2).

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FOR

FREDERICK ATTERBURY, Esq., C.B., the King's Printer of Acts of Parliament.